Duchesne Bunkhouse AC Replacement
1240LR27Q0002

Statement of Requirement
The work under this contract includes furnishing all labor, materials, equipment, tools, transportation, and incidentals necessary to remove the existing 5-ton air-cooled refrigerant condenser unit and associated indoor coil, and to provide and install a new 2.5-ton air-cooled condenser unit and compatible indoor coil at the Duchesne Bunkhouse. **Property Location:** Location where performance is to be completed: **250 S 400 W, Duchesne, Utah 84021** See C04 Attachment 2 – Statement of Work for a complete list of requirements.

- See Attachments for more information
    1. C04 Attachment 2 –Statement of Work
    2. C04 Attachment 3 – Wage Determination
    3. C04 Attachment 4 – Past Performance Data Sheet
    4. C04 Attachment 5 – Team Partner Consent Form
    5. C04 Attachment 6 – Biobased Product List
    6. C04 Attachment 7 – Equipment List
    7. C04 Attachment 8 – Schedule of Items
    8. C05 Attachment 9 – Q&A's and Pictures

Questions shall be submitted via email to adam.koepke@usda.gov and are due no later than November 6th, 2026, 1500 MST.

No formal site visit is scheduled for this requirement. However, offerors may request an individual site visit for visual inspection of the work area. To arrange a site visit, submit a request to:
Adam Koepke, Contract Officer
Email: adam.koepke@usda.gov
Site visits will be coordinated based on availability and operational needs.

This solicitation closes on November 20th, 2026, at 3:00 PM MST. See 52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025) for instructions. Submit quotes via email to Adam Koepke at adam.koepke@usda.gov.

Federal Acquisition Regulation (FAR) and United States Department of Agriculture Acquisition Regulation (AGAR) Clauses and Provisions

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference Feb 1998

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52

52.212-4 Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)
☐ Alternate I (Nov 2025) of 52.212-4
52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)
52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
52.222-50 Combating Trafficking in Persons (Nov 2025)
☐ Alternate I (Nov 2025) of 52.222-50
52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
52.232-39 Unenforceability of Unauthorized Obligations (Jun 2013)
52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
52.233-3 Protest After Award (Sep 2025)
52.233-4 Applicable Law for Breach of Contract Claim (Sep 2025)
52.240-91 Security Prohibitions and Exclusions (Nov 2025)
☐ Alternate I (Nov 2025) of 52.240-91
52.244-6 Subcontracts for Commercial Products and Commercial Services (Nov 2025)

The following clauses are applicable if checked:

☐ 52.203-6 Restrictions on Subcontractor Sales to the Government (Jun 2020) with Alternate I (Nov 2021) of 52.203-6
☐ 52.203-13 Contractor Code of Business Ethics and Conduct (Nov 2021)
☐ 52.204-9 Personal Identity Verification of Contractor Personnel Jan 2011
☒ 52.204-13 System for Award Management—Maintenance (Nov 2025)
☐ 52.204-91 Contractor identification (Nov 2025)
☒ 52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)
☐ 52.209-9 Updates of Publicly Available Information Regarding Responsibility

Matters (Sep 2025)

☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)

☐ 52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Nov 2025)

☒ 52.219-6 Notice of Total Small Business Aside (Nov 2025)

☐ Alternate I (Mar 2020).

☐ 52.219-8 Utilization of Small Business Concerns (Nov 2025)

☐ 52.219-9 Small Business Subcontracting Plan (Nov 2025)

☐ Alternate III (Nov 2025) of 52.219-9.

☐ Alternate IV (Nov 2025) of 52.219-9

☐ 52.219-14 Limitations on Subcontracting (Nov 2025)

☐ 52.219-16 Liquidated Damages—Subcontracting Plan (Nov 2025)

☐ 52.219-33 Nonmanufacturer Rule (Nov 2025)

☒ 52.222-3 Convict Labor (June 2003)

☐ 52.222-19 Child Labor—Cooperation with Authorities and Remedies (Nov 2025)

☐ 52.222-35 Equal Opportunity for Veterans (Nov 2025)

☐ Alternate I (Jul 2014) of 52.222-35

☐ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)

☐ Alternate I (Jul 2014) of 52.222-36

☐ 52.222-37 Employment Reports on Veterans (Nov 2025)

☐ 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Dec 2010

☒ 52.222-41 Service Contract Labor Standards (Aug 2018)

☒ 52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014)

This Statement is for Information Only:
It is not a Wage Determination

Employee Class	Monetary Wage -- Fringe Benefits
Heating, Ventilation, and Air-Conditioning Mechanic	$25.70 + Fringe
Electrician	$30.05 + Fringe

☐ 52.222-43 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (Multiple Year and Option Contracts) (Aug 2018)

☐ 52.222-44 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (May 2014)

☐ 52.222-51 Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014)

☐ 52.222-53 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (Nov 2025)

☐ 52.222-54 Employment Eligibility Verification (Nov 2025)

☒ 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)

☒ 52.222-90 Addressing DEI Discrimination by Federal Contractors (Apr 2026)

☒ 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (Nov 2025)

☐ 52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)

☐ Alternate I (May 2008) of 52.223-9

☒ 52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Nov 2025)
☒ 52.223-12 Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (Nov 2025)
☒ 52.223-23 Sustainable Products and Services (Nov 2025)
☐ 52.224-3 Privacy Training (Jan 2017)
  ☐ Alternate I (Jan 2017) of 52.224-3
☒ 52.225-1 Buy American-Supplies (Nov 2025)
  ☐ Alternate I (Oct 2022) of 52.225-1
☐ 52.225-3 Buy American--Free Trade Agreements--Israeli Trade Act (Nov 2025)
  ☐ Alternate II (Nov 2025) of 52.225-3.
  ☐ Alternate III (Nov 2025) of 52.225-3.
  ☐ Alternate IV (Oct 2022) of 52.225-3
☐ 52.225-5 Trade Agreements (Nov 2023)
☐ 52.225-19 Contractor Personnel in a Designated Operational Area or Supporting a Diplomatic or Consular Mission outside the United States (May 2020)
☐ 52.225-26 Contractors Performing Private Security Functions Outside the United States (Oct 2016)
☐ 52.226-4 Notice of Disaster or Emergency Area Set-Aside (Nov 2007)
☐ 52.226-5 Restrictions on Subcontracting Outside Disaster or Emergency Area (Aug 2025)
☐ 52.229-12 Tax on Certain Foreign Procurements
☐ 52.232-29 Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021)
☐ 52.232-30 Installment Payments for Commercial Products and Commercial Services (Nov 2021)
☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)
☐ 52.232-34 Payment by Electronic Funds Transfer—Other Than System for Award Management (Jul 2013)
☐ 52.232-36 Payment by Third Party (Nov 2025)
☒ 52.237-2 Protection of Government Buildings, Equipment, and Vegetation (Apr 1984)
☒ 52.237-3 Continuity of Services (Jan 1991)
☐ 52.240-92 Security Requirements (Nov 2025)
☐ 52.240-93 Basic Safeguarding of Covered Contractor Information Systems (No 2025)
☐ 52.247-64 Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2025)
  ☐ Alternate I (Apr 2023) of 52.247-64.
  ☐ Alternate II (Nov 2021) of 52.247-64

Other Applicable Clauses

52.237-2 Protection of Government Buildings, Equipment, and Vegetation (Apr 1984)
52.245-1 Government Property (Sep 2021)
  ☐ Alternate I (Sep 2021) of 52.245-1
52.245-2 Government Property
52.245-9 Use and Charges

AGAR Clauses

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of the clause may be accessed electronically at Internet address https://www.usda.gov/guidance-documents/acquisition-policy/ocp/usda-agar30-sept-26pdf.

AGAR 452.203-70 Unenforceable Supplier Terms (MAY 2026)

AGAR 452.204–70 Modification for Contract Closeout (Apr 2026)

AGAR 452.236-70 Electronic Submission of Payment Requests (Sep 2026)

Solicitation Information

Award Type

It is anticipated that a Firm-Fixed-Price contract will be awarded as a result of this synopsis/solicitation.

The Government intends to make one award from this solicitation. Therefore, to be considered responsive, contractors must submit pricing for all items.

Evaluation and Basis for Award

The provision at FAR 52.212-2, Evaluation—Commercial Products and Commercial Services is not applicable to this solicitation. In lieu of this provision, quotes will be evaluated in accordance with FAR 12.203 based on the criteria listed below. Award will be made to the offeror representing the best value to the Government.

Price:
The offeror's quotation will be evaluated in accordance with FAR 12.204, to determine if it is fair and reasonable.

Technical Acceptability:
Technical acceptability will be evaluated on an **Acceptable/Unacceptable** basis. To be acceptable, the offeror must provide enough information to demonstrate they can meet the requirements of the Statement of Work (SOW). At a minimum, the quote must include:

Technical Approach (Short Narrative)
A brief description explaining how the offeror will remove the existing 5-ton HVAC condenser and coil and install a new 2.5-ton system at the Duchesne Bunkhouse, including:

- Methods for system disconnect, refrigerant recovery, and compliant disposal.
- Removal of existing equipment, piping, electrical connections, and mounting hardware.
- Installation of the new condenser and coil, including refrigerant lines, insulation, supports, and required electrical modifications.
- System testing, charging, start-up, and verification of proper operation.
- Ability to meet service timelines.
- Site restoration for any surfaces or penetrations affected during installation

Regulatory Compliance
Offeror must provide:

- Proof of required state/local waste hauling permits, if required.
- Confirmation of access to an approved disposal facility.
- Confirmation that all refrigerant recovery and disposal will meet federal and state environmental regulations
- Assurance that all work will comply with applicable electrical, mechanical, and safety codes and regulations.

Personnel

Identify personnel who will perform the work and confirm they have relevant HVAC installation and system commissioning experience (short summary only; no resumes required).

Past Performance:

The Government may utilize any references provided by the Contractor, along with information available from past contracts/orders with the USDA and any information found using sources such as Federal Government sources or the Contractor Performance Assessment Reporting System (CPARS) to determine if the Contractor has acceptable or neutral Past Performance. Past Performance will be evaluated using the following rating system:

- Acceptable: The contractor shows a demonstrated ability to meet contract requirements in prior or current contracts, including quality of work, timeliness, cost control, business relations, and adherence to contract terms.
- Neutral: Offeror does not have a past performance record.
- Unacceptable: The contractor has a documented history of failing to meet contract requirements, including poor quality, missed deadlines, cost overruns, lack of responsiveness, or unethical behavior.

Evaluation Method

The Government will evaluate quotations based on the lowest price technically acceptable criteria. Only the lowest priced offer will be evaluated for Technical Acceptability. Should the lowest priced offer not receive an acceptable technical or past performance rating, the process will continue in order of lowest priced offer until the lowest price, technically acceptable offer with acceptable or neutral past performance is identified.

Qualification Requirements

Offerors, or the product or service, are not required to meet a qualification requirement to be eligible for award.

Delivery Information

F.o.b. destination, is requested as the F.O.B. point for all deliverables.
All offers will be considered F.O.B. Destination unless F.O.B. origin is specified AND estimated shipping costs are included.

Shipping Instructions:

Any Items that require shipping shall be shipped to the following address:
250 S 400 W, Duchesne, Utah 84021

52.252-1 Solicitation Provisions Incorporated by Reference Feb 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and

submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52

52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025)

Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. At a minimum, offerors shall include:

AT A MINIMUM, QUOTERS SHALL SUBMIT THE FOLLOWING DOCUMENTS BACK WITH THEIR
RESPONSE TO THIS SOLICITATION:
1. SF-1449, Sign and date boxes 17 and 30a.-30c., (See Attachment).
2. Schedule of Items (including Quoter's Company Information) (See Attachment 8).
3. Any Amendment that may be issued.
4. Technical Response as Identified in Evaluation Criteria and Basis for Award, Technical Approach (Short Narrative) , Past Performance (completed attachment #4), and Price (schedule of items, completed attachment 8).
5. Attachment #7 Equipment List.
6. Attachment #6 Biobased Product List. (If Applicable)
7. Attachment #4 Past Performance Datasheet.
8. Team Partner Consent Form Attachment #5 (If Applicable)(Note: An offeror who intends to subcontract must identify their proposed subcontractor on this forma the time offers are due).

FAR 52.212-1 is amended as follows:

Period for acceptance of offers.
The Offeror agrees to hold the prices in its offer firm for **90 calendar days** from the date specified for receipt of offers.

52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
52.209-2 Prohibition on Contracting with Inverted Domestic Corporations - Representation (Sep 2025)
52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Sep 2025)
52.240-90 Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)

The following provisions are applicable if checked:
☐ 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)
☒ 52.204-7 System for Award Management—Registration (Nov 2025)
☐ Alternate I (Nov 2025) to 52.204-7
☐ 52.204-90 Offeror Identification (Nov 2025)
☐ 52.207-6 Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts) (Aug 2024)
☐ 52.209-12 Certification Regarding Tax Matters (Oct 2025)
☐ 52.219-2 Equal Low Bids (Nov 2025)

☐ 52.222-18 Certification Regarding Knowledge of Child Labor for Listed End Products (Feb 2021)
☐ 52.222-48 Exemption from Application of the Service Contract Labor Standards for Maintenance, Calibration, or Repair of Certain Equipment–Certification (Nov 2025)
☐ 52.222-52 Exemption from Application of the Service Contract Labor Standards for Certain Services-Certification (Nov 2025)
☐ 52.222-56 Certification Regarding Trafficking in Persons Compliance Plan (Oct 2020)
☐ 52.223-4 Recovered Material Certification (May 2008)
☐ 52.225-2 Buy American Certificate (Oct 2022)
☒ 52.225-4 Buy American-Free Trade Agreements-Israeli Trade Act Certificate (Nov 2025)
☐ 52.225-6 Trade Agreements-Certificate (Feb 2021)
☐ 52.226-3 Disaster or Emergency Area Representation (Nov 2007)
☐ 52.229-11 Tax on Certain Foreign Procurements—Notice and Representation (Jul 2025)

Other Applicable FAR Provisions

52.225-18 Place of Manufacture (Aug 2018)
52.237-1 Site Visits (Apr 1984)

AGAR Provisions

This solicitation incorporates one or more provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of the clause may be accessed electronically at Internet address https://www.usda.gov/guidance-documents/acquisition-policy/ocp/usda-agar30-sept-26pdf.

NOTICE FOR FILING AGENCY PROTESTS
United States Department of Agriculture (USDA) Protest Procedures

The United States Department of Agriculture (USDA) is committed to fair, transparent, and efficient acquisitions. Interested parties with concerns about this solicitation are encouraged to seek resolution through the following USDA procedures.

Tier 1: Contracting Officer Concern Resolution

Submission: Interested parties with concerns about either the solicitation or subsequent award should first submit their concern directly to the Contracting Officer, providing sufficient detail to allow the Contracting Officer to understand and assess the issue.

Process: The Contracting Officer will review the concern, seek clarification as needed, and engage with the interested party to attempt prompt resolution.

Review Timeline: The Contracting Officer will make every effort to provide a response or resolution within 10 business days of receiving the concern.

Effect on Award or Performance: Tier 1 engagement is not considered an official notification of filing an agency protest and does not pause solicitation deadlines, delay award decisions, or suspend contract performance.

Next Steps: If the matter cannot be resolved at Tier 1, the interested party may file a written agency protest under Tier 2.
USDA encourages all parties to seek resolution with the Contracting Officer before filing an agency protest.

Tier 2: Agency Protest

If concerns cannot be resolved at Tier 1, an interested party may file a written agency protest with either the Contracting Officer or the USDA Independent Review Authority. The decision by the USDA Independent Review Authority is an alternative to a decision by the Contracting Officer. The USDA Independent Review Authority will not consider an appeal of the Contracting Officer's decision on an agency protest.
The protest must state whether the protester elects review by the Contracting Officer, by the UDSA Independent Review Authority. If no election is stated, the Contracting Officer will decide the protest.

Required Information: Protests shall include the information set forth in FAR 33.104-4 (a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.

Submission: Agency protests should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Timeliness: Protests must be filed within the timeframes specified in FAR 33.104.

Effect on Award or Performance: Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined to be in the best interest of the Government.

Review Timeline: USDA strives to resolve agency-level protests within 35 business days of receipt.

Election of Forum: By filing a protest with USDA, the protesters agree not to file a protest on the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If such a protest is filed externally, the USDA agency protest will be dismissed.

Questions: Questions regarding this notice or protest procedures should be directed to the Contracting Officer identified in this solicitation.